is, therefore, little need to sanction "some falsehood in order to protect speech that matters." *Id.*, at 341.

The scope of constitutional protection of communicative expression is not universally inelastic. In the area of labor relations, for example, the Court has recognized that "an employer's free speech right to communicate his views to his employees is firmly established and cannot be infringed by a union or the National Labor Relations Board." *NLRB* v. *Gissel Packing Co.*, 395 U. S. 575, 617. See *NLRB* v. *Virginia Electric & Power Co.*, 314 U. S. 469. Yet, in that context, the Court has concluded that the employer's freedom to communicate his views to his employees may be restricted by the requirement that any predictions "be carefully phrased on the basis of objective fact." [3] 395 U. S., at 618. In response to the contention that the "line between so-called permitted predictions and proscribed threats is too vague to stand up under traditional First Amendment analysis," the Court relied on the employer's intimate knowledge of the employer-employee relationship and his ability to "avoid coercive speech simply by avoiding conscious overstatements he has reason to believe will mislead his em-

[3] Speech by an employer or a labor union organizer that contains material misrepresentations of fact or appeals to racial prejudice may form the basis of an unfair labor practice or warrant the invalidation of a certification election. See, *e. g.*, *Sewell Mfg. Co.*, 138 N. L. R. B. 66; *United States Gypsum Co.*, 130 N. L. R. B. 901; *Gummed Products Co.*, 112 N. L. R. B. 1092. Such restrictions would clearly violate First Amendment guarantees if applied to political expression concerning the election of candidates to public office. See *Vanasco* v. *Schwartz*, 401 F. Supp. 87 (EDNY) (three-judge court), summarily aff'd *sub nom. Schwartz* v. *Postel*, 423 U. S. 1041. Other restrictions designed to promote antiseptic conditions in the labor relations context, such as the prohibition of certain campaigning during the 24-hour period preceding the election, would be constitutionally intolerable if applied in the political arena. Compare *Peerless Plywood Co.*, 107 N. L. R. B. 427, with *Mills* v. *Alabama*, 384 U. S. 214.